

Topic : DIVORCE.

Question 1: What role do online parenting apps play in post-divorce co-parenting?

Question 2: How can legal clinics assist low-income individuals in divorce cases?

Question 3: What are the lessons learned from cases of collaborative divorce?

Introduction:-

Marriage whether considered as a sacrament or a contract, gives rise to a status. It confers a status of husband and wife on parties to the marriage, and a status of legitimacy on the children of the marriage. So, once it came to be established that marriage was a civil contract, it was the logical next step to recognize that it was also a dissolute union. However, marriage has always been considered as a social institution. It is asserted that there is a social interest in the preservation and protection of the institution of marriage. Divorce is one of the most undesirable phases of marriage. It is the logical process of dissolving a marriage and freeing the partners from the bond. Divorce can be categorized into three types: contested divorce, mutual divorce and void and voidable marriage. Contested divorce can lead to a lengthy and bitter legal battle. On the other hand, mutual divorce is a less time consuming and amicable process. Void and voidable marriages are those that are legally invalid or can be annulled by the court. Apart from lengthy and costly legal procedures, there are available alternative resolution processes that can help parties to dissolve their marriage by a fair, confidential and cost saving means. These processes include Mediation, Negotiation and Collaborative Divorce Mechanisms. Several post-divorce co-parenting means has also developed in last few years in many countries across the globe to settle the divorced parents peacefully and without any anxiety disorders and also to keep their child grow consistently in a healthy and disciplined environment.



What role do online parenting apps play in post-divorce co-parenting?

Goal of co-parenting:-

Co-parenting refers to the process of divorced or separated parents continuing to raise their kid(s) together even after they have separated as a couple. Rather than two parents taking each other to court to gain custody of their children, parents continue to work together in deciding what is best for their children. By enhancing communication, organization and consistency, online parenting apps help reduce the stress and conflict often associated with post-divorce parenting, ultimately benefiting the well-being of the children involved.

Online Co-Parenting Applications: Its essence and benefits:-

In post-divorce case, co-parenting apps allow us to navigate a busy schedule, upload key informations, share important documents about child and even split costs evenly, so one parent isn't left out of pocket. Mostly, ex-partners or platonic co-parents use these apps to keep abreast of their child's schedule. Co-parenting apps build with a digital platform that allows users to communicate, share schedules, keep track of key documents and more.

Benefits of using co-parenting applications:

In many of the divorce cases the parents are worried about the future of their child. To decrease their tension, Information Technology has developed these wonderful featured parenting apps. These apps provide:

- **Organized Documentation-** Important documents like medical records, school reports, and custody agreements can be stored and accessed by both parents. These apps make financial transparency easier, allowing for the tracking and sharing of expenses related to child.
- **Consistency for children-** These apps help facilitate joint decision-making on important matters such as education, health, and extracurricular activities. Apart from facilitating, it helps maintaining consistent routine for their child.
- **Compliance Monitoring-** Apps can help ensure that both parents are adhering to custody agreements and court orders.
- **Allowing third-party access-** These apps allow a neutral third-party like a mediator, or legal professional to

access communication records in resolving disputes, which can help reduce conflicts.

- **Improved Communication-** These apps offer secure messaging platforms that keep conversations documented, reducing misunderstandings and miscommunications.

Various Co-Parenting online applications:-

There are several online parenting apps designed to help divorced or separated parents manage co-parenting responsibilities more effectively. Followings are some of the notable ones-

❑ Onward Co-Parenting Expenses:

- **Benefits-**

- a) Onward offers a free 14-day trial;
- b) Tracks payments and expenses;
- c) Split expenses by a percentage or dollar amount.

- **Cons-**

- a) Available in some of the countries only.

- **Features-**

- a) With Onward , parents can upload receipts, enter shared expenses, and then send an invoice to their co-parent to get paid back;
- b) Parent can send one invoice a week or submit one a month;
- c) With a few clicks co-parents can pay back using apps such as PayPal, zelle, or other cash payment apps;
- d) To reduce financial conflict, co-parents can copy a third party, like a lawyer on the email.

❑ Our Family Wizard:

- ♦ **Benefits-**

- a) Court-approved;
- b) Option to pay expenses in-app;
- c) Free child, third-party and professional accounts.

- **Cons-**

- a) It can be time-consuming to use;
- b) Some features are behind a premium paywall.

- **Features-**

- a) A shared calendar lets the parents view, which parent has the kids on what day;
- b) Events are color-coded with notes on who's doing pick-up and drop-off and holidays are marked with a star;
- c) Promotes clear communication and reduces conflicts by providing a neutral platform;
- d) Provides a messenger tool that streamlines communication. Once start, the messages can't be deleted or edited;
- e) Helps upload receipts and make payments in-app to reduce financial tension and stress.

❑ Custody x Change:

- **Benefits-**

- a) Shared calendar displays custody split by percentage;
- b) Comprehensive parent plan templates;
- c) Evidence organizer lets the parent track expenses, record journal entries and more;
- d) Provides a 30-day free trial.

- **Cons-**

- a) More complex than other co-parenting apps;
- b) App is only available for download from the official website.

- **Features-**

- a) Provides a parenting plan, also known as a custody agreement;
- b) Provides a range of step-by-step templates to help co-parents draft a parenting plan;
- c) Drafts can be court-documented at a later date;
- d) It hosts a parent-to-parent communication system that detects hostile language, giving the opportunity to rephrase messages and avoid any drama.

☐ **Talking Parents-**

- **Benefits-**

- a) Color-coded shared calendar;
- b) Co-parent can add extended family members, babysitters, etc;
- c) Ensures all communication is documented and can be used in legal settings if necessary.

- **Cons-**

- a) No expenses tracker or messenger service.

- **Features-**

- a) Shared calendar and file storage;
- b) Reminders keep co-parents on track so no one misses an important appointment;
- c) With the to-do list feature, co-parents can record essential tasks and assign family members;
- d) Switch to the daily agenda view to see that day's events, current to-dos and notes all on one easy-to-digest page.

☐ **How can legal clinics assist low-income individuals in divorce cases?**

Legal Aid Clinics: A general overview:-

Legal Services include providing free legal aid to those weaker sections of society who fall within the purview of Section 12 of the Legal Services Authorities Act, 1987. Government in every state provides legal aid services through various Legal Services Authorities at the national, state, and district levels. These authorities ensure that legal services are accessible to the economically weaker sections of society. A low-income individual who is willing to seek legal assistance to resolve her matrimonial dispute can contact her local District Legal Services Authority or Sub-Divisional Legal Services Clinic to inquire about the availability of legal aid services for dissolving her marriage. Non-governmental organizations often provide low cost legal assistance specifically on family law issues, including divorce.

Right to Legal Aid in India and Constitutional Goals:-

“It is settled law that free legal aid to the indigent persons who cannot defend themselves in a court of law is a Constitutional mandate under Articles 39-A and 21 of the Indian Constitution”. The law has to help the poor who do not have means, i.e., economic means, to fight their cases as a right to life, guaranteed under Article 21 of the Constitution¹.

The Constitutional mandate rescue operation began with V.R Krishna Iyer, J. and P.N Bhagwati, J.'s committees' report, weaker sections thus became enabled to approach law courts, right from Muncif Courts to the Supreme Court. The CILAS² also come on to the scene and initiated methods of solving civil disputes in non-legal and non-formal forum.

1. K. Ramaswamy J. while delivering his key note at Law Ministers' Conference at Hyderabad in 1975.

2. Committee for the implementation of Legal Aid Services.

Different ADR mechanisms to resolve dispute related with divorce cases:-

- **Mediation-**

The use of the term “mediation” is well known in international law. Mediation is the most frequently adopted ADR technique. It contemplates the appointment and intervention of neutral third person who helps the parties to reach a negotiated settlement. He does not have the power to adjudicate or impose an award. It is conducted on a confidential basis and without prejudice to the legal rights and remedies of the parties.

- **Collaborative Divorce Technique-**

Collaborative divorce or collaborative separation refers to the use of an out-of-court process that addresses the emotional, financial and legal issues that arise as our family transitions from one household to two. It is a voluntary process that focuses on making sure all the information we require to make decisions is available, and that our negotiations remain constructive and capture our interests. Respectful communication and full transparency are of primary importance. Husband and his spouse will each have their own collaboratively-trained lawyer for guidance and support, and a neutral family professional and/or financial professional may also be part of their team. The whole team focuses on their goals and concerns while helping them achieve the best possible outcome for them and their children. The collaborative process is not just for separating couples. It is an excellent way to work through the details of a marriage contract or cohabitation agreement. Discussions are focused on one and his/her future spouse's interests and concerns and the process ensures negotiations will not become adversarial.

1. K. Ramaswamy J. while delivering his key note at Law Ministers' Conference at Hyderabad in 1975.
2. Committee for the implementation of Legal Aid Services.

Benefits of Mediation: -

- i) **Informality-** No court rules or legal precedents are involved in mediation. The mediator does not impose a decision upon the parties. As opposed to adversarial forums, the mediator helps maintain a business-like approach to resolving a dispute. There are no fixed solutions in mediation. Parties can look to developing creative solutions to resolve matters and the solution rests with the parties themselves.
- ii) **Privacy and confidentiality-** The mediation conference takes place in a private setting such as a conference room at any of the Arbitration Associations. Mediation is not a matter of public record. Its confidentiality is maintained.
- iii) **Time and cost savings-** Mediation generally lasts a day. Complex matters may require more time due to highly technical issues and/or multiple parties. Without the formalities found in litigation, mediation usually results in substantial cost savings.
- iv) **Control-** Parties have control over their participation in mediation. A party can decide to terminate their participation at any point in mediation. Mediators help parties maintain control over the negotiation that takes place.

Mediation: Application, Procedure and Skills:-

- **Application-**

Rule-4 of the Civil Procedure-Alternative Dispute Resolution Rules, 2003 defines mediation by stating that, settlement by ‘mediation’ means the process by which a mediator appointed by parties or by court, as the case may be, mediates the dispute between the parties to the suit by the application of the provisions of the Mediation Rules, 2003 in part-II, and in particular, by facilitating discussion between parties directly or by communicating with each other through the mediator, by assisting parties in identifying issues, reducing misunderstandings, clarifying priorities, exploring areas of compromise, generating options in an attempt to solve the dispute and emphasising that it is the party's own responsibility for making decisions which affect

them.

- **Procedure-**

Stage 1: Mediator's opening statement;

Stage 2 : Disputant's opening statements;

Stage 3 : Joint discussion;

Stage 4 : Private caucuses i.e., a chance for each party to meet privately with the mediator. Each side will be placed in a separate room.

Stage 5 : Joint negotiation to bring the parties back together to negotiate directly;

Stage 6: Closure, if the parties reach an agreement, the mediator will likely put its main provisions in writing and ask each side to sign the written summary of the agreement.

- **Skills-**

i. Patience;

ii. Sincerity;

iii. Wit;

iv. Endurance;

v. Probing Skills;

vi. Wisdom.

These are the necessary qualities that a good mediator has. The most successful mediators are empathetic, non-judgemental, have patience and persistence, are optimistic, sharp minded and creative and they have a good common sense and a good sense of humour.

It can be concluded that an effective mediator has the following attributes- Fairness, Impartiality, Independence, Good listener, Coolness, Patience, Politeness, Honesty, Summarising ability.



What are the lessons learned from cases of collaborative divorce?

- **Concept of Collaborative Law:-**

Collaborative law is a legal process whereby a separating couple can each appoint their own collaboratively trained lawyers to work with them by dealing with matters on a face to face basis by way of four-way meetings:

- **Meeting with lawyer**– Spouses meet with their personal attorneys one-on-one to discuss goals and terms;
- **Build divorce team**- Spouses assemble a team of advisors, usually psychologists, financial planners, child specialists, etc. ;
- **Negotiate with either spouse**- Four-way meetings take place between husband, his wife, and their lawyers, usually on a monthly or bi-monthly basis, to settle the terms of the divorce;
- **Draft a settlement agreement**- When everyone agrees, spouse's lawyers draw up a settlement that each party must sign to finalize the divorce.

This affords the parties the opportunity to resolve matters in a safe and supported settling with their lawyer by their side.

• **Development of Collaborative Law Practice in Divorce Cases:-**

It was in 1990 where this practice started when lawyer Stu Webb and fellow divorce lawyers and mediators formed the Collaborative Law Institute. They began to lose faith in the traditional role of a lawyer in family breakdown and was searching for an alternative.

They have conceived an idea of Collaborative Law Practice to settle disputes out of court through negotiations. In many states still this idea is not implemented yet. It is relatively new in most states. For example, the Uniform Collaborative Law Act was passed in Colorado in 2021. It specifies the requirements for collaborative divorce in the state, including hiring an attorney. It also deems communications made during collaboration inadmissible in later court proceedings. Most states have similar requirements, but working with a local divorce attorney will ensure one's dissolution follows the parameters of the Collaborative Divorce mechanism in their state.

• **Merits of Collaborative Legal Mechanism:-**

- i) **Signing into an Agreement-** Collaborative law allows spouses and their legal counsel to sign agreement that they will not go to court. In fact, should the divorcing couple somehow decide to take the matter to trial, the lawyers on both sides agree to withdraw their representation;
- ii) **It costs less money-** Primarily in seeking a collaborative divorce, both parties stand to save money by negotiating every major issue of the divorce. Negotiation provides advantage to save the cost which could be incurred upon them if they go through a court trial;
- iii) **Cooperation-** The goal of this process is to cooperate. Beside having trained lawyers for both the side, parties can include mental health experts, counsellors, child specialists, for considering the overall welfare of each of the child when deciding future outcomes. It needs enough maturity for considering this legal mechanism.
- iv) **Get rid of post-divorce litigation-** Through proper negotiation, parties agree to settle every future consequences, there is not much of a need for post-divorce litigation. Parents are able to set their own parenting schedule and create a new parenting relationship.

By adopting this commitment, everyone's focus is on achieving the best possible outcomes by agreement and not through costly court proceedings;

- v) **Inclusion of an agreement-** As part of the Agreement, parties agree that if the process breaks down, then new lawyers will need to be instructed to represent them in Court Proceedings. This is a strong motivation for those who involved to do all they possibly can to achieve a resolution.
- vi) **Confidentiality-** The collaboration conference takes place in a private setting such as a conference room at any of the Arbitration Associations. Collaboration is not a matter of public record. Its confidentiality is maintained.

• **Demerits of Collaborative Legal Mechanism:-**

- 1. When the grounds of divorce involve severe mental traumatic or post-traumatic experiences, it becomes impossible for lawyer to reach in a amicable settlement;
- 2. It becomes harder for the respective lawyers to counsel the parties and guide them by providing legal advises;
- 3. Sometimes it also becomes difficult for the child to nurtured and healthy co-parenting environment.

- **Collaborative Technique and Mediation Mechanism: a comparative analysis:-**

- a) Collaborative process is different from mediation as the client have the benefit of being able to seek legal advice at every step of the way. The overruling objective is always to reach a fair and mutually acceptable agreement that can then be binding by the court;
- b) In a collaborative divorce, the process gets led by the lawyers. Lawyers need not be present for mediation, if they do not conduct the meeting;
- c) Mediation process provides only one mediator for each case to settle down disputes, but inclusion of mental counsellors, as well as child specialists and financial advisor make the collaborative process more approachable.

- **Lessons learned from this process:-**

Parties believe that it is possible for them to restore enough trust in each other to achieve a successful outcome. They believe their ability to achieve a successful outcome in the divorce primarily will depend on the discussion they make during the process. In order to achieve their most important goal, parties are willing to let go some smaller, short-term issues even though it may be hard to do so. Parties are not afraid of or intimidated by their spouse. They are willing to try see things from their spouse's point of view in order to keep achieve the best possible outcome. They believe that it is very important that their children maintain a strong, healthy relationship with their co-parents.

Conclusion :-

In conclusion, collaborative divorce and mediation techniques offer profound lessons for future couples, transcending the mere process of separation and extending into the realm of marital wisdom. By witnessing the power of respectful communication, empathetic understanding, and solution-focused approaches, couples can glean invaluable insights into the fabric of a successful partnership. These methods underscore the significance of fostering a culture of mutual respect, active listening, and constructive conflict resolution within marriages. Moreover, they emphasize the preservation of dignity and the prioritization of long-term well-being, especially when navigating complex familial dynamics. As future couples embark on their journey together, they can draw from the profound lessons of collaborative divorce and mediation, shaping their relationships with resilience, compassion, and foresight. In doing so, they pave the way for marriages that thrive amidst challenges, anchored by the enduring pillars of trust, cooperation, and enduring love. In essence, collaborative divorce and mediation techniques not only provide practical solutions for navigating the complexities of separation but also serve as blueprints for cultivating enduring and fulfilling marriages. Through these processes, couples learn the art of effective communication, honing their ability to express needs and concerns with clarity and empathy. They also acquire invaluable skills in conflict resolution, discovering the transformative power of compromise and negotiation in fostering harmony within relationships.

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